



CHAPTER xvi.

An Act to empower the University of Sheffield to acquire lands in the city of Sheffield and for purposes connected therewith.

[30th June 1948.]

WHEREAS by royal charter dated the thirty-first day of May in the fifth year of the reign of His Majesty King Edward VII a university was constituted and founded in the city of Sheffield and a body politic and corporate was constituted by the name of "the University of Sheffield" (in this Act referred to as "the University") with full power to take and hold lands for the transaction of their business and the carrying out of their purposes:

And whereas the University require further lands for the transaction of their business and for carrying out their purposes and it is expedient to empower them to acquire the lands referred to in this Act and to enact the other provisions thereof:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the town clerk of the city of Sheffield which plans and book of reference are in this Act respectively referred to as the deposited plans and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by

and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title
and com-
mencement.

1.—(1) This Act may be cited as the University of Sheffield (Lands) Act 1948.

(2) This Act shall come into force on the first day of July nineteen hundred and forty-eight.

Exercise of
powers by
council.

2. The powers conferred by this Act upon the University may be exercised by the council thereof on behalf of the University.

Incorporation
and
application
of Acts.

3.—(1) The Lands Clauses Acts with the following exceptions and modification (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

8 & 9 Vict.
c. 18.

(a) Section 92 (Parties not to be required to sell part of a house &c.) and sections 127 to 132 (relating to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the University and shall be sufficient without the addition of the sureties mentioned in that section.

(2) In the construction of the Lands Clauses Acts as incorporated with this Act this Act shall be deemed to be the special Act and the University shall be deemed to be the promoters of the undertaking.

9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.

(3) The provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 and of Part V of the Town and Country Planning Act 1947 and of any Act or Acts amending or applying those provisions shall apply in relation to the acquisition of land by the University as they apply in relation to the acquisition of land by a government department or a local or public authority.

Power to
acquire lands.

4. Subject to the provisions of this Act the University may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference.

Period for
compulsory
purchase.

5. The power to purchase land compulsorily under this Act shall cease on the thirty-first day of December nineteen hundred and fifty-three.

6.—(1) If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the University after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the city of Sheffield for the correction thereof.

Correction
of errors in
deposited
plans and
book of
reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described.

to be
certified
by the
justices

(3) Any such certificate or a copy thereof shall be deposited with the town clerk of the said city and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the University to take the lands in accordance with the certificate.

(4) Any certificate or copy deposited under this section shall be kept by the said town clerk with the other documents to which the same relates.

to be
kept by the
town clerk

7. The University and their surveyors officers and workmen and any person duly authorised in writing under the hand of the bursar of the University may at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken or any of them for the purpose of surveying and valuing the said lands houses and buildings.

Power to
enter upon
property for
survey and
valuation.

8. No person shall be required to sell a part only of any house building or factory or of any land which forms part of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal by whom compensation is to be assessed determine that in the case of a house building or factory such part as is proposed to be taken can be taken without material detriment to the house building or factory or in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house and if the tribunal so determine compensation shall be awarded in respect of the severance of the part so proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the University that part of the house building factory park or garden.

Acquisition
of parts only
of certain
properties.

Compensation
in case of
recent
alterations.

9. In determining any question of disputed purchase money or compensation under this Act no allowance shall be made on account of any improvement or alteration effected or interest created after the twentieth day of November nineteen hundred and forty-seven which in the opinion of the tribunal to whom the question is submitted was not reasonably necessary and was effected or created with a view to obtaining or increasing compensation.

Further
powers of
entry.

10. At any time after notice to treat has been served for any land which the University are by this Act authorised to purchase compulsorily the University may after giving to the owner and occupier of the land not less than three months' notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

Stopping up
of highways.

11.—(1) (a) The University may stop up the whole or such portion or portions as they think fit of so much of the highways referred to in this subsection as is shown on the deposited plans as intended to be stopped up and thereupon all rights of way and other rights in over or along the same shall be extinguished and the University may appropriate and use the sites of the highways or of the portion or portions thereof so stopped up.

(b) The highways hereinbefore referred to are Sutton Street Ruth Square Red Lane a passageway leading from Winter Street to Bolsover Street and a lane leading off Mushroom Lane.

(2) The University shall not under the powers conferred by this section stop up any portion of a highway unless the University obtain the consent of the owners lessees and occupiers (if other than the University) of the lands fronting on both sides of such portion:

Provided that the University shall not be required to obtain any such consent in respect of any land on and of which they have entered and taken possession under section 10 (Further powers of entry) of this Act or by agreement with the owners lessees and occupiers thereof.

(3) The University shall pay compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall in case of dispute be determined by arbitration under the Acquisition

of Land (Assessment of Compensation) Act 1919 and in accordance (so far as applicable) with the provisions of that Act.

12.—(1) If in exercise of the powers conferred by section II (Stopping up of highways) of this Act Sutton Street or any portion thereof is stopped up the following provisions shall unless otherwise agreed in writing between the University and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across the said street or portion thereof at the time of such stopping up:—

For protection
of Postmaster-
General.

- (a) The power of the Postmaster-General to remove the line shall be exerciseable notwithstanding the stopping up of the said street or portion thereof so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the University of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the University in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the University the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the University and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of the said street has been stopped up the University shall send by post to the Postmaster-General a notice informing him of such stopping

up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression "telegraphic line" has the same meaning as in the Telegraph Act 1878.

41 & 42 Vict.
c. 76.

Extinction of
private rights.

13.—(1) Any private right of way or other right or easement over or in respect of land which the University are authorised by this Act to acquire compulsorily shall if they so resolve and give notice of their resolution to the owner of the right or easement be extinguished as from the acquisition by them of the land or as from the expiration of one month from the service of the notice whichever may be the later.

(2) The University shall pay compensation to all persons interested in respect of any such right or easement so extinguished and such compensation shall in case of dispute be determined by arbitration under the Acquisition of Land (Assessment of Compensation) Act 1919 and in accordance (so far as applicable) with the provisions of that Act.

For protection
of Sheffield
Church
Burgesses
Trust.

14. For the protection of the twelve capital burgesses and commonalty of the town and parish of Sheffield in the county of York (in this section referred to as "the owners") the following provision shall unless otherwise agreed in writing between the owners and the council of the University apply and have effect:—

Notwithstanding anything contained in this Act the University shall not acquire compulsorily under the powers of this Act the estate or interest of the owners in the properties respectively numbered on the deposited plans 15 16 20 21 22 23 24 25 26 27 28 and 32 or in any of those properties.

For protection
of Sheffield
Diocesan
Trust.

15. For the protection of the trustees of the Sheffield Diocesan Trust and Board of Finance the following provision shall unless otherwise agreed in writing between the said trustees and the council of the University apply and have effect:—

Notwithstanding anything contained in this Act the University shall not acquire compulsorily under the powers of this Act the premises numbered 29 on the deposited plans.

For protection
of trustees of
Frederick
Fowler
deceased.

16. The following provision for the protection of National Provincial Bank Limited and Ida Maude Fowler the personal representatives of Frederick Fowler deceased (in this section referred to as "the trustees") shall have effect:—

The acquisition by the University of the interests of the trustees in the land numbered 53 on the deposited plans

shall be subject to the covenant on the part of the University relative to the use of the land which is referred to in the agreement dated eighth of March nineteen hundred and forty-eight and made between the trustees of the one part and the University of the other part and which is to be expressed in the conveyance of the land to the University.

17. For the protection of the undertakers as defined in this section (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the University and the undertakers apply and have effect:—

(1) In this section—

"the undertakers" means the lord mayor aldermen and citizens of the city of Sheffield or the Yorkshire Electricity Board or the Sheffield and District Gas Company;

"apparatus" means—

(a) in relation to the said lord mayor aldermen and citizens their sewers drains culverts and road gullies and their water mains pipes valves and connections;

(b) in relation to the said electricity board their electric lines and works as respectively defined in the Electric Lighting Act 1882; and ^{45 & 46 Vict. c. 56.}

(c) in relation to the said gas company their gas mains and works:

(2) Subject to the provisions of this section hereinafter contained notwithstanding the stopping up of the whole or any portion or portions of any highway under the powers of this Act—

(a) the University shall not interfere with any apparatus in over or under such highway or portion or portions thereof so stopped up;

(b) the undertakers their engineers and workmen and others in their employ shall at all times have such rights of access to the apparatus situate in over or under any such highway or portion or portions thereof as they had immediately before such stopping up; and

(c) the undertakers shall be at liberty to execute and do all such works and things in upon over or under such highway or portion or portions thereof as may be necessary for inspecting repairing maintaining renewing enlarging or removing such apparatus or laying new apparatus:

(3) If the University intend to build on the highway or portion or portions thereof stopped up or if for any reason compliance with subsection (2) of this section is impracticable the undertakers may and if so requested by the University shall and by such means as the undertakers may reasonably decide cut off remove divert or alter all or any of the apparatus in such highway or portion or portions thereof and connect any existing apparatus to any new apparatus which may be requisite and the reasonable expense incurred by the undertakers in such cutting off removal diversion or alteration and connection to new apparatus and in the provision of apparatus in substitution therefor shall be repaid to them by the University:

(4) If in the exercise by the University of the powers of this Act—

(a) any damage to any apparatus or property of the undertakers; or

(b) any interruption in the supply of water electricity or gas (as the case may be); or

(c) any impediment to the flow of sewage or drainage;

is caused by the University their contractors agents workmen or servants or any person in the employ of them or any of them then the University shall bear and pay the cost reasonably incurred by the undertakers in making good such damage and shall make compensation to the undertakers for any loss sustained by them by reason of such damage interruption or impediment and shall indemnify the undertakers against all claims demands proceedings costs damages and expenses which may be made or taken against or recovered from or incurred by the undertakers by reason or in consequence of any such damage interruption or impediment:

(5) The University shall bear and pay to the undertakers the amount of any expenses reasonably incurred by the undertakers in or in connection with the cutting off removal diversion or alteration of any apparatus and the connecting of any new apparatus with any existing apparatus rendered necessary by reason or in consequence of the exercise by the University of the powers of this Act and shall indemnify the undertakers against all claims and demands by the owners or occupiers of premises supplied by means thereof:

- (6) If any claim or demand in respect of which the University may be required to indemnify the undertakers is made the University shall be informed thereof and they shall be entitled to conduct all negotiations for a settlement of such claim or demand and any litigation that may arise therefrom:
- (7) Whenever by reason of the exercise by the University of the powers of this Act any apparatus shall be rendered derelict useless or unnecessary the University shall pay to the undertakers such a sum as may be agreed between the University and the undertakers to be the value of such apparatus and the apparatus shall thereupon become the property of the University and the University shall also pay to the undertakers any expenses reasonably incurred by them in consequence of any such apparatus being so rendered derelict useless or unnecessary:
- (8) Before incurring any expense for the repayment of which the University may become liable under the provisions of this section the undertakers shall supply to the University particulars of the works to be executed or things to be done together with an estimate of the expense to be incurred:
- (9) If any difference shall arise under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) between the University and the undertakers such difference shall be referred to and determined by arbitration and unless otherwise agreed the arbitrator shall be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 or any statutory modification thereof for the time being in force shall apply to any such arbitration.

18. If the University serve notice to treat upon the owner of the land numbered 35 on the deposited plans they shall not be entitled to take possession thereof before the first day of July nineteen hundred and fifty-three unless before that date suitable alternative accommodation is available for the owner of the land and his tenants.

For protection
of owner of
land
numbered 35.

Any question whether such accommodation is available shall unless otherwise agreed be determined by the county court judge for Sheffield.

Saving for
town and
country
planning.

19. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Notices and
definition
of owner.

20.—(1) Any notice which the University are authorised or required by this Act or an enactment incorporated therewith to give shall be sufficiently authenticated by the signature thereto of the bursar or any other officer authorised in that behalf by the council of the University and a notice purporting to bear such signature shall be deemed unless the contrary is proved to have been duly authenticated.

26 Geo. 5. &
1 Edw. 8. c. 49.

(2) The provisions of section 285 (Service of notices &c.) of the Public Health Act 1936 shall apply to any notice which is required or authorised by this Act or an enactment incorporated therewith to be given to or served on any person.

(3) In this Act unless the context otherwise requires the expression "owner" has the meaning assigned to it by section 343 of the Public Health Act 1936.

Costs of Act.

21. All the costs charges and expenses preliminary to and of and incidental to the obtaining applying for and passing of this Act shall be paid by the University.

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